

his daughter, and afterwards on the daughter's marriage settles 1000*l.* upon her. Here the will is considered as revoked, and the claims under the will are actually extinguished. If on the other hand, a father covenants on the daughter's marriage to settle 1000*l.* upon her and afterwards by will bequeaths 1000*l.* to the daughter, here the legal obligation under the settlement remains, and the daughter if she chooses may insist on her claims under the settlement. But if she does so, the Court will not also allow her to claim under the will, or in other words the Court puts her to her election (*b*).

SECTION II.

WHAT AMOUNT IS RAISABLE UNDER THE HEAD OF PORTIONS.

This question arises as to capital and interest, and maintenance money and costs.

1. **Capital.** — As to the amount of *capital* to be raised, the instrument itself generally prescribes the sum with sufficient exactness, and according to the common form now adopted in settlements, the amount graduates according to the number of children, *i.e.* a certain sum if there be only one younger child who takes a vested interest, an increased sum if there be two such children, and a larger sum still if there be three or more such children.

[*409] *2. **Ambiguity.** — Occasionally the settlement has been so ambiguously expressed with reference to the events contemplated, that recourse to the Court has become necessary. Thus, in *Hemming v. Griffith (a)*, the trust was that if there should be one younger child the trustee should raise 8,000*l.*, and if two younger children 12,000*l.*, and if three or more younger children 15,000*l.*, the said portions to be paid as the husband and wife or the survivor should appoint, and in default of appointment the portions to vest

(*b*) *Chichester v. Coventry*, 2 L. R. H. L. 90, *per* Lord Romilly; *Russell v. St. Aubyn*, 2 Ch. D. 398; *Thomas v. Kemys*, 2 Vern. 348; *Copley v. Copley*, 1 P. W. 147; *Byde*

v. Byde, 2 Eden, 19. As to interest on the advance made after the date of the will, see the decree in *Beckton v. Barton*, 27 Beav. 106.
(*a*) 2 Giff. 403.